

26STCV03824 26STCV03824

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-07-21

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C407%2C07%2F21%2F2026

Source SHA-256: 9f1914b4c01ed8f9524a0cc5b02472978b920acea52dd3fe0177416e994887b7

Case Number: 26STCV03824 Hearing Date: July 21, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: July

21, 2026 TRIAL DATE: Not set

CASE: Daniel Binnis v. City
of Los Angeles, et al.

CASE NO.: 26STCV03824

DEMURRER

WITHOUT MOTION TO STRIKE

MOVING PARTY: Defendant

City of Los Angeles

RESPONDING PARTY: Plaintiff Daniel

Binnis

Plaintiff Daniel Binnis was disembarking from a Metro bus at a bus stop when the bus driver suddenly and unexpectedly caused the bus to move forward without warning and without ensuring that Plaintiff had safely disembarked. Plaintiff was struck, lost his balance, and fell to the floor, causing him serious bodily injury and loss of consciousness. This action followed.

I. BACKGROUND

On February

5, 2026, Plaintiff commenced this action against Defendants, City of Los Angeles, County of Los Angeles, and Los Angeles County Metropolitan Transportation Authority ("Metro").

On May 13,

2026, Plaintiff filed the operative First Amended Complaint ("FAC") against Defendants for negligence and negligent hiring, retention, and supervision.

On June 11, 2026, Metro filed this Demurrer to the FAC.

On July 8,

2026, Plaintiff filed an opposition.

On July 14, Metro had filed a reply.

II. LEGAL STANDARD

A demurrer for sufficiency tests whether the complaint states a cause of action. *¿* (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) *¿* When considering demurrers, courts read the allegations liberally and in context, accepting the alleged facts as true. *¿* (Nolte v. Cedars-Sinai Medical Center (2015) 236 Cal.App.4th 1401, 1406.) *¿* "Because a demurrer challenges defects on the face of the complaint, it can only refer to matters outside the pleading that are subject to judicial notice." *¿* (Arce ex rel. Arce v. Kaiser Found. Health Plan, Inc. (2010) 181 Cal.App.4th 471, 556.) *¿*

III. DISCUSSION

Metro argues the second cause of action for negligent hiring, retention, and supervision is subject to demurrer because (i) the FAC does identify a statutory basis to sustain the cause of action, (ii) a public entity cannot be held directly liable for negligent hiring, retention, and supervision, and (iii) it is duplicative of the first cause of action. does not state facts sufficient to constitute a cause of action against LAUSD. Specifically, LAUSD argues the Complaint contains minimal details and conclusory allegations regarding LAUSD's failure

to supervise.

The

arguments lack merit. “Except as otherwise

provided by statute: [¶] (a) A public entity is not liable for an injury,

whether such injury arises out of an act or omission of the public entity or a

public employee or any other person.” (Gov. Code, § 815(a).) “A public entity

is liable for injury proximately caused by an act or omission of an employee of

the public entity within the scope of his employment if the act or omission

would, apart from this section, have given rise to a cause of action against

that employee or his personal representative. [¶] (b) Except as otherwise

provided by statute, a public entity is not liable for an injury resulting from

an act or omission of an employee of the public entity where the employee is

immune from liability.” (Gov. Code, § 815.2(a).)

Here, the

second cause of action incorporates the preceding allegations, including Government

Code section 815.2, and thus identifies a statutory basis for liability. (See FAC, ¶¶ 22, 26.) Second, Section 815.2 provides a basis for

direct liability against Metro. Third, the

FAC expressly alleges Metro’s liability for its negligence in hiring,

retaining, supervising, training, monitoring, and/or entrusting the bus driver

with the safety of passengers, among other things. (FAC, ¶ 29.)

These allegations are separate and distinct from the allegations

supporting the first cause of action.

IV. CONCLUSION

Based on the foregoing, the demurrer is OVERRULED.

Defendant Los Angeles County Metropolitan Transportation

Authority is ordered to serve and file its Answer to the FAC within 10 days of this order.

Plaintiff is ordered to give notice, unless waived.

Dated: July 21, 2026

Brock T. Hammond

Judge of the Superior Court